Minor Consent Services	Number	Page
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Revision Date:
January 1, 2026

Background:
A minor may receive services related to sexual assault, pregnancy/pregnancy-related services, family planning, sexually transmitted diseases, drug/alcohol abuse, outpatient mental health treatment and counseling without parental consent.

Purpose:
This section provides policy guidance on how minors may request or renew eligibility for minor consent services either in person or by telephone. The purpose of this update is to incorporate requirements for certain minors to consent to outpatient mental health treatment or counseling.

Policy:
A. Services Covered Under Minor Consent
A minor may apply for Medi-Cal without knowledge or parental consent to receive minor consent services. Minor consent services are categorized by age as follows:

Under 12 years old	12 years and older
• Pregnancy and pregnancy related services • Family planning services • Sexual assault services	• Pregnancy and pregnancy related services • Family planning services • Sexual assault services • Sexually transmitted infection prevention, diagnosis and treatment • Drug/alcohol use treatment and counseling • Mental health outpatient treatment and counseling

Minors aged 16 or older may receive Buprenorphine as a replacement narcotic abuse treatment, also known as replacement narcotic therapy (RNT), in a narcotic treatment program (NTP) without parent/guardian consent.

Excluded Services (require parental consent):
- Methadone treatment
- Psychotropic drugs
- Convulsive therapy
- Psychosurgery
- Sterilization

B. Who Can Apply
- Minors under 21 years of age
  - Individuals under 21 who are defined as adults under Medi-Cal Program Guide (MPG) 01.01 are not eligible to minor consent services and should be evaluated under a full scope Medi-Cal program
  - Parents cannot apply on behalf of the minor. However, one parent may accompany the minor to apply when there is a need to maintain confidentiality from the other parent
- The minor must be considered living in the home with their parents

A minor is considered living in the home with their parent(s) if one of the following applies:
- They are temporarily away at school or college
- They are temporarily living with another relative or friend, but their parent(s) continue to be financially and legally responsible for the minor. For example, the minor is claimed as a tax dependent by the parent(s)
- They are identified as Seriously Emotionally Disturbed (SED). SED minors are considered living in the home with their parents; however, minor consent will not cover mental health treatment or counseling required by the minor's Individual Educational Plan (IEP) regardless of whether the SED minor is in 24-hour care or a day treatment program

Minor consent applications shall **not** be processed when:
- The minor is under 12 years of age and is applying for services related to drug/alcohol use treatment or counseling, a sexually transmitted infection, or for mental health outpatient care. Deny the request for minor consent
- The minor is currently eligible for Medi-Cal with no Share of Cost (SOC). Issue an immediate need card to the minor and do **not** post a journal entry on the active case. Refer to Section G for the appropriate aid code
- The minor is covered under a managed care plan. The minor applicant will be referred to the plan for treatment unless they are requesting drug/alcohol use, mental health treatment, or the minor's managed care identification card is in the parent's possession, and the health plan refuses to provide services without viewing the identification card

C. Verifications

Minor consent customers are required to provide verification of income if employed.

D. Mental Health Treatment

A mental health professional will provide the minor with a written statement to verify if mental health treatments such as counseling or residential shelter services are required. They will also determine whether involving the minor's parent/guardian is appropriate.

A new Request for Eligibility Limited Services form (MC 4026) will only be required:
- Each time a new statement from the mental health professional is needed, or
- If there is a break in aid after initial issuance

To consent to outpatient mental health treatment or counseling, or to residential shelter services, a minor who is 12 years of age or older is no longer required to be:
- An alleged victim of incest or child abuse
- In danger of causing serious physical or mental harm to themselves or others

Minor consent customers are **not** required to provide the following:
- Identification
- Social Security number (SSN)
- Pregnancy verification
- Statement verifying the need for minor consent. A signature on the MC 4026 is acceptable verification of the need for minor consent services
- Citizenship or Immigration status. Minor consent is considered a restricted program

E. Confidentiality

State law and regulations prohibit the Health and Human Services Agency (HHSA) from contacting the parents of a minor to report they have applied for minor consent services.

Protect a minor's confidentiality by adhering to the following:

- Do not enter a SSN in the California Statewide Automated Welfare System (CalSAWS) or image the SSN card. The Medi-Cal Eligibility Data System (MEDS) will automatically assign a pseudo number to the minor
- Enter the Family Resource Center (FRC) address as the minor's address to prevent automated Notices of Action (NOAs) and correspondence from being sent to the minor's residence

F. Child Abuse Reporting Requirements

The Child Abuse Reporting Law requires HHSA to report suspected child abuse to Child and Family Well-Being (CFWB), law enforcement agencies, and agencies responsible for investigating cases involving dependent children. Report suspected child abuse without disclosing that the minor has applied for minor consent services.

When filing a report, the following information may be requested:

- Name of the person making the report
- Name of the minor
- Present location of the minor
- Nature and extent of injury
- An explanation as to why child abuse is suspected

G. Aid Codes

Determine appropriate minor consent aid codes using the MC 4026 to identify the type of coverage the minor is seeking.

Aid Code	Description
7M	• Restricted to minors at least 12 years of age or older • Sexually transmitted disease treatment and prevention • Drug and alcohol abuse • Family planning • Sexual assault services • Aid code can be used for cases with or without a SOC
7P	• Restricted to minors at least 12 years of age or older • Sexually transmitted disease treatment and prevention • Drug and alcohol abuse • Family planning • Sexual assault services • Outpatient mental health treatment and counseling • Aid code can be used for cases with or without a SOC

7N	• Restricted for pregnant minors with no age restriction • Covers pregnancy services and family planning services • Aid code has no SOC
7R	• Restricted to minors under the age of 12 • Family planning • Sexual assault services • Aid code can be used for cases with or without a SOC

Multiple Minor Consent Aid Codes
In cases where a pregnant minor requests a service that is not covered under the 7N aid code, issue two aid codes using the Request for Medi-Cal Temporary BIC Card form (14-1 HHSA). Issue only one temporary card and one NOA to the minor.

Example:
A 15-year-old pregnant minor applies for minor consent. Eligibility is established using Aid Code 7N which covers pregnancy related services. The minor also reports a need for mental health services and provides necessary documentation showing eligibility to receive the services under minor consent. Issue a 7P aid code for the customer in addition to 7N.

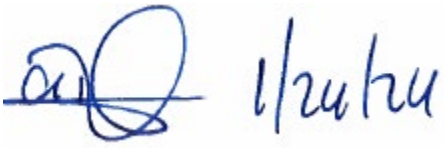
Refer to Processing Guide 37: Minor Consent Services for guidance on processing a minor consent services request.

Program Impacts:
Form MC 4026 has been updated to allow for electronic signatures.

References:
MEPM Article 4, Section 4V
ACWDL 94-63
MEDIL I 21-09, 25-14

Sunset Date:
This policy will be reviewed for continuance on or by December 31, 2029.

Approval for Release:



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